

		Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
107	Lopez vs. Vehicle Protection Specialists, LLC 2020-01174402	Motion for Final Approval Plaintiffs Carmen Lopez and Pete Jaramillo's Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On December 14, 2020, Plaintiff Carmen Lopez filed a Class Action Complaint against Defendants Vehicle Protection Specialists, LLC and Daniel Laurent alleging seven causes of action for various violations of the Labor Code. On November 9, 2021, Plaintiff Lopez filed the First Amended Complaint adding Pete Jaramillo as a named Plaintiff. On August 29, 2022, Plaintiffs filed the original Motion for Preliminary Approval of Class Action Settlement and separately filed a document entitled "Joint Stipulation re Class Action and PAGA Penalty Settlement." At the hearing on March 3, 2023, the Court found that it appeared Plaintiffs were attempting to settle a PAGA claim that had not been asserted in the operative First Amended Complaint and was not incorporated by reference in the Joint Stipulation. As a result, the Court continued the matter and ordered briefing on the issue, including an explanation as to the timeliness of any purported PAGA claim. However, Plaintiffs' untimely supplemental filing did not address the deficiencies in the Motion or Joint Stipulation identified by the Court. Therefore, at the second hearing on June 16, 2023, the Court denied the preliminary approval motion, without prejudice, and stated that Plaintiffs could file another amended Complaint and refile a new preliminary approval motion. On August 7, 2023, pursuant to Stipulation and Order, Plaintiffs filed the operative Second Amended Class Action Complaint ("SAC") alleging the same seven causes of action for wage-and-hour violations of the Labor Code, and adding a cause of action for PAGA penalties. On August 11, 2023, Plaintiffs filed a new Motion for

Preliminary Approval. After several issues with the moving papers and the Settlement Agreement were addressed, the Court granted the Motion at the sixth hearing on the matter on March 22, 2024. The Order Granting Preliminary Approval was entered on March 27, 2024. The Final Approval hearing was set for June 28, 2024.

On June 14, 2024, the parties filed a joint stipulation seeking a continuance of the Final Approval hearing. Apparently, the Class List submitted to the settlement administrator by the Defendants was incomplete and contained calculation errors. The continuance was granted by the Court.

On September 20, 2024, Plaintiffs filed the current Motion for Final Approval of Class Action and PAGA Settlement. The Motion seeks final approval of the Amended Joint Stipulation re Class Action and PAGA Penalty Settlement ("Settlement Agreement") for the non-reversionary Gross Settlement Amount of \$275,000.00. The putative Settlement Class consists of 235 Class Members comprised of: "All current and former California employees of Defendants who worked in non-exempt positions between December 4, 2016, and May 13, 2022."

In addition, the Settlement includes 112 PAGA Members comprised of: "All current and former California employees of Defendants who worked in non-exempt positions since November 2, 2019, to May 13, 2022."

On June 28, 2024, the settlement administrator, Simpluris, Inc., sent Notice Packets, in both English and Spanish, via U.S. Mail to all 235 Class Members. As of August 18, 2024, a total of eight (8) Notice Packets were deemed undeliverable with no forwarding address. As of September 30, 2024, no Class Members had objected to or requested to be excluded from the Settlement Agreement. In addition, no Class Members submitted disputes as to the number of weeks they had worked during the Class Period.

The Court concludes that the \$275,000.00 Class Action and PAGA Settlement is fair and reasonable, and that notice to the Class was adequate. Accordingly, the Court certifies the above-defined Class for settlement purposes only, and approves the following specific awards and disbursements:

- Attorneys' fees totaling \$68,750.00 to Class Counsel, Law Offices of Buchsbaum & Haag, LLP;
- Litigation costs totaling \$10,000.00 to Class Counsel, Law Offices of Buchsbaum & Haag, LLP;
- Settlement administration costs of \$6,300.00 to

Simpluris, Inc.;

- Class Representative Service Payments of \$5,000.00 each to Plaintiff Carmen Lopez and Plaintiff Pete Jaramillo;
- \$15,000.00 to the Labor Workforce and Development Agency (LWDA) for its share of PAGA penalties.

Pursuant to the Settlement Agreement, Defendants are ordered to separately pay all employer payroll taxes owed on the wage portions of the Individual Class Payments.

The Net Settlement Amount payable to all Class Members and PAGA Members is \$169,950.00, including the \$5,000.00 in PAGA Penalties to be distributed to the PAGA Members in accordance with the terms of the Settlement Agreement.

Within five (5) court days, Class Counsel must submit a revised Proposed Order with the following corrections:

- Remove attorney information from caption page
- The Gross Settlement Amount must be provided in Paragraph 4
- In Paragraph 8, the amount of the attorneys' fees award must be revised so as to be consistent with this Ruling
- In Paragraph 9, the amount of the Class Representative Service Payment must be revised so as to be consistent with this Ruling
- In Paragraph 16, revise the date of the Final Accounting hearing to May 21, 2026

Within five (5) court days, Class Counsel must submit an invoice from the settlement administrator reflecting the fees and costs incurred.

Final Accounting is set for May 21, 2026, at 2:00 p.m. in Department CX102. Counsel shall submit the final administrator's report no later than fourteen (14) calendar days prior to the Final Accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to Class Members and PAGA Group Members, and the amount of uncashed funds remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance.

Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.

108	Fan vs. Cybercoders, Inc. 2021-01207940	Motion for Final Approval The Court has reviewed the supplemental materials provided by Plaintiff’s counsel and finds that they substantially address the identified concerns. Accordingly, Plaintiff Wayne Eric Fan’s Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On June 29, 2021, Plaintiff Wayne Eric Fan, an individual, for himself, on behalf of all others similarly situated, and as aggrieved employees under the California Private Attorney General Act (“Plaintiff”), filed a Complaint for Damages against Defendant Cybercoders, Inc. (“Defendant”). The Complaint alleges six causes of action for various wage-and-hour individual and representative PAGA claims on behalf of Plaintiff and the aggrieved employees. On February 7, 2022, Defendant moved to compel arbitration of Plaintiff’s individual claims on the ground the parties had entered into an arbitration agreement that encompassed all claims asserted in the Complaint. At the hearing on August 12, 2022, the Court granted the motion in part and ordering Plaintiff’s individual claims to arbitration and staying the representative PAGA claims. In April 2023, the parties agreed to mediate the representative PAGA claims, and they reached a settlement after engaging in mediation on October 23, 2023. On May 14, 2024, Plaintiff filed the current Motion for Approval of PAGA Settlement. The Motion seeks approval of the parties’ Joint Stipulation of PAGA Settlement and Release for the non-reversionary Gross Settlement Amount of \$245,000.00. The settlement group consists of 418 PAGA Members comprised of: “All persons employed by Cybercoders, Inc. in the State of California in non-exempt positions from April 25, 2020, and December 22, 2023.” Based on the representations of Plaintiff’s counsel and a review of the Settlement Agreement, the Court concludes that the \$245,000.00 PAGA Settlement is fair and reasonable. The Court also concludes that total PAGA penalties in the amount of \$143,982.45 are fair and reasonable, and seventy-five percent (75%) will be paid to the Labor and Workforce Development Agency (“LWDA”) in settlement of all representative claims alleged by or on behalf of Plaintiff and the PAGA Members. Accordingly, the Court approves the following awards and disbursements from the Gross Settlement Amount:
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